

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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GARY WILLIAMS,

Plaintiff,

-against-

THE CITY OF NEW YORK; NYPD SGT. MARK DANON;
NYPD P.O. TIMOTHY STOKES; NYPD P.O. STEVEN
WAN; NYPD P.O. BLISS; NYPD P.O. JOHN/JANE
DOES # 1-10; all of the above individual
defendants, including named are sued in their
individual and official capacities

Defendants.

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YOU ARE HEREBY SUMMONED to appear and to answer the Complaint in this action and to serve a copy of your answer on plaintiff's attorney within twenty (20) days of the service of this Summons, exclusive of the day of service (or within thirty (30) days after service is complete if this Summons is not personally delivered to you within the State of New York), and in case of your failure to appear or to answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: NEW YORK, NY
MARCH 2, 2016



MARTIN E. ADAMS, ESQ.
ADAMS & COMMISSIONING LLP
Attorney for Plaintiffs
65 Broadway 715
New York, New York 10006
212-430-6590

DEFENDANTS ADDRESS:

The City of New York
100 Church Street
New York, NY 10007

NYPD SGT. Mark Danon;
NYPD P.O. Timothy Stokes;
NYPD P.O. Steven Wan; NYPD P.O. Bliss;
NYPD P.O. JOHN/JANE DOES # 1-10
25th Precinct
120 East 119th Street
New York, NY 10035

SUMMONS:

Index No: _____

Basis of Venue: Location of
incident: 15 East 131 Street
New York, New York NY 11233

Jury Trial Demanded

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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GARY WILLIAMS,

Plaintiff,

COMPLAINT

-against-

Index No: _____

THE CITY OF NEW YORK; NYPD SGT. MARK
DANON; NYPD P.O. TIMOTHY STOKES; NYPD
P.O. STEVEN WAN; NYPD P.O. BLISS; NYPD
P.O. JOHN/JANE DOES # 1-10; all of the
above individual defendants, including
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official capacities

Basis of Venue:

Location of incident: 15
East 131 Street New York,
New York NY 11233

Jury Trial Demanded

Defendants.

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The Plaintiff, Gary Williams, by and through counsel
Adams & Commissiong LLP, alleges upon information and belief as
follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort
action in which plaintiff seeks relief for the violation of his
rights secured by the laws of the State of New York; New York
State Constitution; 42 U.S.C. §§ 1983 and 1988; and the Fourth,
Sixth, and Fourteenth Amendments to the United States
Constitution. Plaintiff's claims arise from an incident that
arose on or about March 29, 2014. During the incident, the City
of New York, and members of the New York City Police Department
("NYPD") subjected plaintiff to, among other things, unlawful

search and seizure, false arrest and imprisonment, malicious prosecution, failure to intervene, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages from the individual defendants, compensatory damages from the municipal defendant, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983, and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction and Venue are proper here because the acts in question occurred in New York County, New York.

PARTIES

4. Plaintiff Gary Williams is a black male, a New York City Corrections Officer and is a resident of the State of New York, New York County.

5. At all times alleged herein, defendant City of New York was a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

6. At all times alleged herein, defendants NYPD Sgt. Mark Danon, P.O. Timothy Stokes, P.O. Steven Wan, P.O. Bliss and

P.O. John or Jane Does # 1-10 were New York City Police Officers employed with the 25th Precinct, located in New York County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

7. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

8. On March 29, 2014, at and in the vicinity of 15 East 131 Street New York, New York, several police officers operating from the 25th Precinct, including upon information and belief, defendants Sgt. Mark Danon; P.O. Timothy Stokes; P.O. Steven Wan; P.O. Bliss and P.O. John or Jane Does # 1-10, at times acting in concert, and at times acting independently, committed the following illegal acts against plaintiff.

9. On March 29, 2014, at approximately 6:30 p.m., at and in the vicinity of 15 East 131 Street, New York, New York, defendants, without either consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff (or any third person) had committed a crime unlawfully arrested plaintiff.

10. Plaintiff was at his home, with his sister and her boyfriend.

11. Plaintiff was having a discussion with his sister, when plaintiff asked her boyfriend to leave.

12. Plaintiff then stated that if the boyfriend did not leave, he would call the police.

13. Plaintiff's sister then called the police and made a false statement that plaintiff had struck her and her boyfriend.

14. When the police arrived, plaintiff's sister recanted her story and said that plaintiff never struck anyone.

15. One officer, P.O. Wan stated that they had to take plaintiff in because plaintiff was a Corrections Officer

16. Sgt. Danon, then asked for plaintiff's firearm and plaintiff complied.

17. Plaintiff asked if he was being arrested and why, and Sgt. Danon said, he was not being arrested, that they were going to take a walk to the precinct.

18. Plaintiff followed Sgt. Danon to the lobby.

19. Sgt. Danon, then ordered one of the officers to handcuff and search plaintiff.

20. Plaintiff was then placed in a squad car, and driven to the 25th precinct.

21. Plaintiff was placed in a holding cell for approximately 3 to 4 hours.

22. Plaintiff was then taken to central booking where his arrest was processed.

23. During this time, in order to cover up their illegal actions, the defendant officers, pursuant to a conspiracy, falsely and maliciously told the New York County District Attorney's Office that plaintiff had committed various crimes.

24. The defendants made these false allegations, despite the fact that they had no evidence that plaintiff had committed a crime, to cover up their misconduct, to meet productivity goals and quotas, and to justify overtime expenditures.

25. However, because there was no basis to arrest plaintiff, much less prosecute plaintiff, the district attorney declined to prosecute the case, and plaintiff was released from central booking.

26. As a result of this arrest, plaintiff has not been reissued his firearm from the Department of Corrections.

27. The individual defendants acted in concert committing the above-described illegal acts toward plaintiff.

28. Plaintiff did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above incidents.

29. At no time prior to, during or after the above incidents were the individual defendants provided with information, or in receipt of a credible or an objectively reasonable complaint from a third person, that plaintiff had violated any law, regulation, or administrative code; committed any criminal act; or acted in a suspicious or unlawful manner prior to or during the above incidents.

30. The defendants acted under pretense and color of state law and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of their rights.

31. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

32. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiff's rights.

33. Upon information and belief, the unlawful actions against plaintiff were also based on profiling.

FIRST CLAIM

(UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)

34. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

35. Defendants unlawfully seized plaintiff's firearm without cause, a warrant, or consent.

36. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM

(FALSE ARREST UNDER FEDERAL LAW)

37. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein

38. Defendants falsely arrested plaintiff without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

39. Accordingly, defendants are liable to plaintiff for false arrest under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

40. Those defendants who did not touch plaintiff, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

41. Accordingly, the defendants are liable to plaintiff for using unreasonable and excessive force, pursuant to 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

THIRD CLAIM

(FAILURE TO INTERVENE)

42. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

43. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

44. Accordingly, the defendants are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights.

FOURTH CLAIM

(MONELL CLAIM)

45. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

46. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiff.

47. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs and policies against plaintiff: (1) unlawfully stopping and searching innocent persons; (2) wrongfully arresting innocent persons in order to meet productivity goals; (3) wrongfully arresting individuals based on pretexts and profiling; (4) using unreasonable force on individuals; and (5) fabricating evidence against innocent persons.

48. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

49. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

50. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop, arrest and prosecute innocent individuals, based on pretexts and false evidence.

51. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

52. In addition to frequently violating the civil rights of countless residents of New York City, numerous members of the NYPD commit crimes. Officers have been arrested and convicted of such crimes as planting evidence on suspects, falsifying police reports, perjury, corruption, theft, selling narcotics, smuggling firearms, robbery, fixing tickets, driving under the influence of alcohol, vehicular homicide, assault and domestic violence. In fact, former NYPD Commissioner Bernard Kerik was convicted of corruption-related crimes in federal and state court and served time in federal prison. In 2011, Brooklyn South narcotics officer Jerry Bowens was convicted of murder and attempted murder in Supreme Court, Kings County, while under

indictment for corruption and is presently serving a life sentence. In 2011, Police Officer William Eiseman and his subordinate Police Officer Michael Carsey were convicted of felonies in Supreme Court, New York County, for lying under oath, filing false information to obtain search warrants and performing illegal searches of vehicles and apartments. In 2012, New York City Police Officer Michael Pena was convicted in Supreme Court, New York County, of raping and sexually assaulting a woman at gunpoint and is presently serving a sentence of 75 years to life.

53. Additionally, the existence of the aforesaid unconstitutional customs and policies of profiling minorities, may be inferred from an analysis of the NYPD conducted by the New York Civil Liberties Union ("NYCLU"). The NYCLU's analysis revealed that more than 2 million innocent New Yorkers were subjected to police stops and street interrogations from 2004 through 2011, and that black and Latino communities continue to be the overwhelming target of these tactics. Nearly nine out of 10 stopped-and-frisked New Yorkers have been completely innocent, according to the NYPD's own reports.

54. In August 2009, Proffer Levine released a report entitled *The Epidemic of Pot Arrests in New York City*, which stated: Perhaps most appalling is who the police are arresting

for marijuana possession. United States government studies have consistently found that young whites use marijuana at higher rates than do young blacks or Latinos. But the NYPD has long arrested young blacks and Latinos for pot possession at much higher rates than whites. In 2008, blacks were about 26% of New York City's population, but over 54% of the people arrested for pot possession. Latinos were about 27% of New Yorkers, but 33% of the pot arrestees. Whites were over 35% of the City's population, but less than 10% of the people arrested for possessing marijuana. In 2008, police arrested Latinos for pot possession at four times the rate of whites, and blacks at seven times the rate of whites.

55. Furthermore, documented civilian complaints about officer misconduct show that African Americans are the most likely targets of abuse, but their complaints are largely ignored. According to the City of New York's Civil Complaint Review Board's ("CCRB") Status Report, dated December and January 2010, in 2010 African Americans were overrepresented as alleged victims of police misconduct. Although making up only 23% of New York City's population, they are 58.5% of the alleged victims in CCRB complaints. On the other hand, whites and Asians were a disproportionately low percentage of alleged victims.

56. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

57. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

58. The City's failure to act resulted in the violation of plaintiff's constitutional rights as described herein.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees, pursuant to 42 U.S.C. § 1988; and
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: New York, New York
March 2, 2016

ADAMS & COMMISSIONG LLP,
Attorney for Plaintiff
65 Broadway Suite 715
New York, New York 10006
212-430-6590
martin@amcmlaw.com
By:

A handwritten signature in cursive script, appearing to read "Martin E. Adams".

MARTIN E. ADAMS, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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GARY WILLIAMS,

Plaintiff,

VERIFICATION

-against-

Index No: _____

THE CITY OF NEW YORK; NYPD SGT. MARK
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above individual defendants, including
named are sued in their individual and
official capacities

Jury Trial Demanded

Defendants.

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STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

GARY WILLIAMS depose and say: I am the plaintiff in the
above-entitled action. I have read the annexed Summons and
Verified Complaint dated March 2, 2016 and know the contents
thereof. The same is true to the best of my own knowledge,
except as to matters therein stated to be alleged upon
information and belief and as to those matters I believe them to
be true.


GARY WILLIAMS

Sworn to me before me on this 2nd day of March, 2016


Notary Public

MARTINE E. ADAMS
NOTARY PUBLIC-STATE OF NEW YORK
NO. 02AD6254317
QUALIFIED IN QUEENS COUNTY
MY COMMISSION EXPIRES 01-23-2020